COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION TWO

No. _____

IN RE RESTRAINT OF SIDNEY S. HICKLIN, JR.,
STATE OF WASHINGTON,

Respondent,

v.

SIDNEY S. HICKLIN, JR.,

Petitioner.

PERSONAL RESTRAINT PETITION

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I. STATUS OF PETITIONER

Petitioner, SIDNEY S. HICKLIN, JR., seeks relief from unlawful confinement pursuant to RAP 16.4.

1. Petitioner is now in the custody of the Department of Corrections and confined at the Stafford Creek Corrections Center in Aberdeen Washington following his conviction in Clallam County Superior Court Cause No. 20-1-00218-05. Appendix A: Declaration of Sidney Hicklin (December 6, 2024).

2. Petitioner was found guilty of rape in the second degree, assault in the second degree, harassment and unlawful imprisonment following a jury trial in June 2021. Appendix B, Judgment and Sentence (August 5, 2021).

3. Petitioner was sentenced by the Honorable Lauren Erickson, Clallam County Superior Court Judge, on August 5, 2021, to 136 months of total confinement and a maximum term

of life on count one, rape in the second degree. Sentences on the other three counts were ordered served concurrently. *Id.*

4. The petitioner's lawyer at trial was John D. Black (WSBA 32109) of Port Angeles, Washington.

5. Petitioner appealed from the superior court's Judgment and Sentence to Division Two of the Court of Appeals in Cause No. 56077-1-II. The petitioner's lawyer on appeal was Mary Swift (WSBA 45668) of Nielsen Koch & Grannis, PLLC in Seattle, Washington.

6. The Court of Appeals' opinion, published in part, found the unlawful imprisonment conviction violated double jeopardy, but affirmed the remaining convictions and denied a motion to reconsider. The opinion was reported at *State v. Hicklin*, 26 Wn.App.2d 177, 527 P.3d 1183 (2023).[1]

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[1] The Court of Appeals also held that a community custody condition requiring that petitioner "not enter drug areas" was unconstitutionally vague and that supervision fees were improperly imposed after the trial court had found Mr. Hicklin indigent. *Id.*

7. A Petition for Review was timely filed July 25, 2023, and assigned Washington Supreme Court Cause No. 102207-7.[2]

8. The Court of Appeals mandate was issued on December 8, 2023.

9. An Order Amending Judgment and Sentence was entered on December 29, 2023. See Appendix C. An Order Affording Relief from Judgment & Amending Judgment and Sentence was subsequently entered on August 28, 2024. See Appendix D.

10. Petitioner has not asked the court for any other relief from his conviction and sentence other than that detailed herein.

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[2] The Court granted the petition solely on the issue of the Victim Penalty Assessment (VPA) and DNA fees, remanding to the trial court for reconsideration of the fees in light of 2023 statutory amendments to RCW 7.68.035 and RCW 43.43.7541. *State v. Hicklin*, 2 Wn.3d 1001, 537 P.3d 1037 (2023).

II. GROUNDS FOR RELIEF

A. Summary of Case.

Mr. Hicklin was convicted after the trial court excluded critical evidence about his long-term and ongoing intimate relationship with the complaining witness, K.H. The defense posited at trial that K.H. was extremely intoxicated and manufactured the allegations of rape and assault, perhaps to cover her boyfriend's discovery of their ongoing relationship and an invitation to get "naked" in the hot tub.

The trial court barred Mr. Hicklin from explaining for the jury that he and K.H. had a regular and ongoing sexual relationship. Evidence of the intimate nature of the relationship was essential to provide context and to explain the exculpatory implications of the DNA evidence. This evidence would have profoundly altered the jury's analysis of the testimony and demonstrated why Mr. Hicklin's testimony was ultimately the more reliable.

B. Issues

1. Those accused of crimes have a constitutional right to present their defense and confront the witnesses against them. The trial court's limitations on Mr. Hicklin's presentation of relevant and highly probative evidence of his long-standing and ongoing intimate sexual relationship with the complaining witness, vitiated his defense. The evidence of their history of intimacy was essential to explain and lawful presence of Mr. Hicklin's DNA on K.H.'s neck, which the State otherwise attributed to the alleged rape and assault. That exclusion was an untenable application of the law to these facts and violated Mr. Hicklin's right to due process of law and a fair trial.

2. Those accused of crimes have a constitutional right to the effective assistance of counsel that includes a duty of zealous advocacy requiring he research the law and investigate the facts in each case. Mr. Hicklin's attorney failed to present readily available alternative bases to admit this critical evidence. This evidence was crucial to support Mr. Hicklin's

theory of the case and provide the jury with the context of their relationship to explain the lawful reason for the State's DNA evidence.

3. The constitutional right to the effective assistance of counsel includes a duty to investigate each case and to bring forth evidence to adequately assess the State' case. Competent counsel had a duty to bring to bear the knowledge and skill necessary supplement his offer of proof with readily available testimony. Where defense counsel failed to marshal and present evidence the trial judge identified as necessary, petitioner received constitutionally deficient representation and is entitled to relief.

4. The constitutional right to the effective assistance of counsel includes a duty to preserve the accused's right to appellate review of significant legal issues. To the extent that defense counsel failed to obtain a final ruling, that duty to protect the right to review was breached. There was no strategic

or tactical reason for failing to preserve petitioner's right to appellate review and he was prejudiced as a result.

C. Facts.

1. Procedural history.

Mr. Hicklin was charged by, and entered a plea of not guilty to, an information filed in Clallam County Superior Court, alleging:

> Count I: Second Degree Rape (forcible compulsion) (RCW 9A.44.050(1)(a).
> Count II: Second Degree Assault (strangulation) (RCW 9A.36.021(1)(g).
> Count III: Felony Harassment (threats to kill) (RCW 9A.46.020(2)(b).
> Count IV: Unlawful Imprisonment (RCW 9A.40.040).

The case was tried to a jury which returned guilty verdicts.

Mr. Hicklin was sentenced to a minimum term of 136 months confinement and community custody for the maximum term of life. Appendix B, Judgment and Sentence, Clallam

County Superior Court No. 20-1-00218-05, filed August 5, 2021.

On appeal, this Court held that the conviction for unlawful imprisonment violated Double Jeopardy and had to be vacated. See *Hicklin*, 527 P.3d at 1183 ¶¶ 2-4. The Washington Supreme Court denied review except to order the trial court to reconsider the imposition of the VPA and DNA fees. *Hicklin*, 2 Wn.3d at 1001.

2. Pretrial Proceedings.

Prior to trial, the defense moved to admit testimony regarding the history of prior sexual relations between Mr. Hicklin and the complaining witness, K.H. Defense counsel argued the evidence was relevant to "consent" and "state of

mind."[3]

Mr. Hicklin testified in support of the motion.[4]

Mr. Hicklin testified that he and K.H. first met at self-help meetings in the Port Angeles recovery community in 2016 or 2017.[5] RP 39. Mr. Hicklin explained,

> I gave her ride homes [sic] after the meetings and she'd invite me in and we'd hang out for the first time and then after that things kinda escalated and to our sexual relationship.
>
> RP 39.

These intimate relations continued over the following three years. They included rendezvouses at K.H.'s house, Mr.

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[3] The request was supported by a motion and supporting declaration and reiterated in the defense motions in limine. See Appendix E: Motion and Affidavit to Allow Evidence of Alleged Victim's Past Sexual History With The Defendant, filed January 13, 2021; Appendix F: Affidavit of John D. Black in Support of Defendant's Offer of Proof as to Admissibility of Prior Sexual Conduct, filed January 13, 2021; Appendix G: Motion in Limine, filed January 13, 2021, at ¶ 5.

[4] Appendix H: RP 39-44.

[5] The parties agreed to refer to the participation in Alcoholics Anonymous as the "recovery community." Appendix G: Motion in Limine at 1 ¶ 4.

Hicklin's apartment and once at his mother's house where they could "hang out in the hot tub." RP 40. Mr. Hicklin described the relationship as primarily sexual. *Id.*

Mr. Hicklin described a specific occasion several years earlier when K.H. had been at his mother's house. They used the hot tub, without bathing suits, and then had sex that night. RP 40.

In July 2020, Mr. Hicklin asked K.H. if she wanted to again "get naked in the hot tub." RP 41. K.H. called 15 to 20 minutes later and said she was on her way. *Id.*

K.H. was already intoxicated when she arrived and had brought a half gallon bottle of vodka. RP 41. The bottle was about half gone. K.H. continued to drink from the bottle after she arrived. *Id.*

Mr. Hicklin estimated K.H. was there 10 to 15 minutes during which "[w]e started kissing and hands kinda all over the place … but we did not have sex." RP 41-42. Before they were

able to consummate the evening's encounter, Mr. Hicklin asked if K.H. would go to the store to buy more alcohol. K.H. agreed so he gave her his bank card to pay. RP 42.

Mr. Hicklin testified he waited, but K.H. did not come back. They did eventually talk by phone a couple of times but "she said she was on her way and by that time I'd already left…." RP 43. "I told her I was going to call the cops because she had my card and she called me back again and I was already gone." RP 43.

Judge Erickson inquired and Mr. Hicklin explained that he "called [K.H.] and text her a few times." RP 44. When asked who called who first, he explained, "I text her and then she called me." RP 44. Judge Erickson then concluded:

> there was no particular factual showing demonstrating even the slightest similarity between past consensual sexual activity and what's alleged here. I mean, I just don't think we have enough detail that goes to the issue of consent.

RP 46 (emphasis added).

Judge Erickson also concluded the evidence of their history together was not admissible because Mr. Hicklin denied they had sex that night. RP 46-47. The judge observed:

> Well, he can certainly deny it and I think it's up to the jury to determine credibility. I just don't think the consent issue is -what I've heard I don't believe would allow me to find that that's -again, there's no particular factual showing, demonstrating even the slightest similarity of past consensual sexual activity and that this one….

RP 48, citing *State v. Weaville*, 162 Wn.App. 801, 256 P.3d 426 (2011).

Judge Erickson agreed that evidence of the messaging "offering hot tub, naked in the hot tub and she then comes over" was admissible but excluded evidence of their prior sexual relations generally and the prior occasion in the hot tub in particular. RP 49. Ultimately, Judge Erickson concluded, "I think I agree with the state, his defense isn't consent," therefore, the court barred evidence regarding their prior sexual relations. RP 51.

3. Trial testimony.

K.H. had known Mr. Hicklin for about three years through their activities in the recovery community and she described him as a friend. RP 277-78.

On July 4, 2020, K.H. was bickering with her significant other, Ashley Messersmith, about going to a big holiday barbecue and she instead made plans to see Mr. Hicklin, ostensibly to talk about the struggles she was going through. RP 281-82. K.H. also acknowledged that she had stopped attending her recovery group meetings and had been drinking vodka that day. RP 283-84.

At the time, Mr. Hicklin was staying at his mother's house in Port Angeles while she was out of town. RP 287. When K.H. arrived, they sat on the couch for some time and talked. RP 285. After a while, Hicklin asked if she would go to the store to get more Hard Lemonade. RP 285. K.H. agreed and Mr. Hicklin gave her his bank card to pay. RP 286, 290-91.

Video from the store showed K.H. wandering through the

aisles and then going back out to the car. A couple of minutes pass with K.H. in the car before she goes back in the store. RP 425-31.[6]

K.H. eventually bought two burgers and a can of Mike's Hard Lemonade. RP 480. She told the clerk it was for her boyfriend. RP 289. When the bank card was declined, she paid with cash and put the change in the bag. RP 480.

K.H. testified that after finishing at the store, she went back to the house. RP 290-92. She testified that when she gave Mr. Hicklin the bag, he became angry and started yelling that his bank card was missing. RP 293-94.

K.H. testified she was sitting on the couch, and Mr. Hicklin grabbed her around the neck but "it wasn't a real hard squeeze" at that point. RP 294-95. At other times he squeezed further up her neck and the pressure would make it more

[6] The way K.H. drove, parked and was stumbling around, led the detective to suspect K.H. was intoxicated. RP 480.

difficult to breathe. RP 298-99. Once while his hands were around her throat he said, "I will end you." RP 300.

K.H. testified it was not possible for her to move when Mr. Hicklin was holding her. RP 296. Mr. Hicklin's body weight on her legs was pushing them open. K.H. then testified Mr. Hicklin "inserted himself inside of me." "He put his penis inside of me." RP 301. K.H. was unable to provide "details" or explain how Mr. Hicklin went from holding her by the throat to a state of undress sufficient for him to accomplish sexual penetration. RP 301-02.

K.H. testified that when she told Mr. Hicklin she had some money in her car, he stopped and let her go to the car but kept the keys. RP 303-04. From the car, K.H. called Ashley Messersmith. RP 305-06.

Ashley Messersmith testified he had known K.H. for more than 20 years. RP 354-55. On July 4th, K.H. had been drinking and then gone to see Mr. Hicklin while he went to a

holiday barbecue. RP 358-59. K.H. called him around 7:30, saying something had happened, the keys were missing or that Mr. Hicklin had taken the keys to the car. RP 360. Mr. Messersmith drove into town and found K.H. standing by the car. RP 363. He put her in the car and went to the Hicklin house to demand the keys, but there was no answer. He then called 911. RP 365.

Officer Geraldine Smith of the City of Port Angeles Police Department was dispatched to East 9th Street. RP 383. When Officer Smith arrived, K.H. was "flighty" and crying. RP 386. Officer Smith testified she walked around with K.H. for a while before she said she had been assaulted and raped. RP 386-87.

K.H. told the officer she went to see Mr. Hicklin because he needed emotional support. RP 383. K.H. told Officer Smith that when she returned to the store, Mr. Hicklin became angry

and upset. K.H. eventually told the officer that he grabbed her by the throat and raped her. RP 388.

Officer Smith took K.H. to the police station for a formal interview and took photographs of K.H.'s neck and thigh. RP 389-90. Officer Smith then took K.H. to the local hospital for an examination by a sexual assault nurse examiner (SANE). RP 396.

The SANE nurse, Melissa Clemens, collected various swabs and articles of clothing. RP 518-24. She also took photographs of K.H. RP 534-50. Nurse Clemmons acknowledged, however, that she could not tell when the contusions were incurred and could not tell if the neck discolorations were "hickeys." RP 552-54.

WSP forensic scientist, Kate Zopolos, analyzed the collected samples. RP 561-71. She testified no semen was detected in the vaginal swab, but male DNA from an unidentified source was present in the perineal swab. RP 572,

577. That swab was not tested to identify the male contributor, however, because of the high female to male ratio. RP 573. The same was true for the swab taken from the left side of the neck. RP 573.

Semen was detected on K.H.'s pants. On further testing, Mr. Messersmith was identified as a contributor to that DNA profile. RP 575. Mr. Hicklin was excluded as a potential source on the pants, but Ms. Zopolos did identify Mr. Hicklin as a contributor to the sample taken from the right side of K.H.'s neck. RP 573-76, 580.

4. The Defense Case.

Mr. Hicklin testified that he has lived around Port Angeles and Forks in Clallam County his entire life. In July 2020 he had been out of town visiting a friend for several months and came back on July 3rd after a long drive. RP 646.

On the way back he was messaging friends to see what everyone was doing over the upcoming holiday. RP 647.

K.H. was one of the friends Mr. Hicklin contacted, letting her know he was back in town and asked if she wanted to "hang out" on July 4th. RP 648. Mr. Hicklin explained that he was staying at his mother's house while she was out of town. K.H. had been there before and they used the hot tub together.

> [I told] her I was in town, see if she wanted to come hang out and she said yeah, sounded good.
>
> RP 649.

Although he had not had a drink for about five years, Mr. Hicklin admitted he had a relapse while he was out of town. RP 649. When K.H. arrived, she too had been drinking. She brought a half-gallon bottle of vodka and was taking "chugs out of the bottle." RP 650, 656, 671.

After K.H. arrived they sat on the couch talking and then kissing. RP 652, 657. Mr. Hicklin was kissing K.H. on the mouth, neck, and cheek. RP 653.

After 15 to 20 minutes, Mr. Hicklin had finished his drink and asked if K.H. would get more at the store nearby. RP

650-51, 657. K.H. agreed and Mr. Hicklin gave her his bank card to pay. RP 651. She left around 6:30, "give or take a few minutes." RP 651-52, 658.

K.H. left, but she did not come back. Mr. Hicklin eventually sent a text message asking where she was and tried calling, but she didn't answer. RP 653, 658. He also. When they finally spoke, Mr. Hicklin said he was going to call the police if she did not bring his bank card back. RP 653, 659, 663.

After telling K.H. he was going to call the police, Ashley Messersmith replied in a text message that he wanted his keys and said that he had Mr. Hicklin's bank card. RP 654. Mr. Messersmith never indicated that Mr. Hicklin had assaulted or raped K.H. RP 655.

Mr. Hicklin acknowledged he got "kinda snotty" and said things he should not have said, but he was emphatic that he did not rape K.H. RP 655, 667-68. He testified that he never had the car keys. RP 669. When K.H. did not come back, Mr. Hicklin

called the bank and reported the card stolen. He then watched the local July 4th fireworks and went to a friend's house. RP 671.

5. Closing Argument.

In closing, the prosecutor argued K.H.'s recollection was credible and established the elements of the crimes charged. RP 709-44. As to her credibility, the prosecutor argued she had been open about her struggles with alcohol and homelessness. RP 721. He also argued that other prosecution witnesses corroborated her testimony. RP 723-30.

With regard to the DNA evidence, the prosecutor tried to explain why the fact that the male DNA found in the perineal swab was not linked to Mr. Hicklin, that he was specifically excluded from the semen stain on her pants, and the ultimate absence of semen in the vagina, was not significant. RP 731. The prosecutor then argued the DNA on K.H.'s neck, which is matched to Mr. Hicklin, linked him to subsequently observed

contusions, and thereby to the alleged strangulation and rape by forcible compulsion. RP 732-33.

Defense counsel argued the State's theory that Mr. Hicklin raped and assaulted K.H. over a missing bank card defied common sense. K.H.'s story was not credible because she "remembers nothing from 7:00 until she gets to the hospital" after "guzzling vodka out of a half-gallon bottle…" RP 745.

Defense counsel challenged the assertion that K.H. went back to the house after her trip to the store, particularly the assertion that one of any number of bags might have been the one from the store absent a receipt. RP 746. Conflicting testimony regarding the timeline was confusing but there was not enough time for the rape and assault to have happened, particularly given K.H.'s testimony she then went to the smoke shop. RP 747.

The defense questioned K.H.'s potential motive after noting that she erased Mr. Hicklin's message about "getting naked in the hot tub" and defense counsel wondered "did [Ash] catch her doing this stuff and this is how it all resolved? Blow up out of proportion for a bank card, a bank card?" RP 748.

Defense counsel speculated as to whether the story K.H. told that night was created to hide the sexual relationship with Mr. Hicklin, or to shield Mr. Messersmith from responsibility for his reaction to discovery of the infidelity. RP 750-52.

Defense counsel then explained how the DNA evidence was consistent with Mr. Hicklin's description of the events of that evening. RP 751. The absence of a link to the semen and perineal swabs, in particular, supported a reasonable doubt that he did not rape K.H. RP 754-57.

In rebuttal, the prosecutor argued that considering the evidence as a whole, the jury should return a guilty verdict. RP 758. He argued again that K.H. was the credible account. RP

759-60. He specifically argued Mr. Hicklin was likely to have inflicted the alleged injuries because his DNA was found on K.H.'s neck. RP 761.

D. Argument.

Petitioner's constitutional right to present his defense and confront witnesses was violated by the exclusion of evidence probative of his history of physical intimacy with K.H.

A petitioner is entitled to relief through a personal restraint petition where (1) constitutional error resulted in actual and substantial prejudice, or (2) a fundamental defect of a nonconstitutional nature that resulted in a complete miscarriage of justice. *In re Personal Restraint of Coats*, 173 Wn.2d 123, 132-33, 267 P.3d 324 (2011). The constitutional violations in the (1) denial of the right to present a defense and confront witnesses; and (2) ineffective assistance of defense counsel, have each resulted in actual and substantial prejudice to Mr.

Hicklin. RAP 16.4(c) gives the court authority to provide relief for these constitutional violations.

1. The trial court's exclusion of evidence about the prior intimate relationship violated the constitutional right to present one's defense because it was highly probative and exculpatory evidence.

Mr. Hicklin was erroneously prohibited from introducing crucial evidence about his physical relationship with K.H. that was central to his defense. Testimony regarding the intimate nature of his relationship with K.H. and their specific experience involving the hot tub were critical to explaining for the jury the lawful reasons for his DNA being found on K.H.'s neck.

a. Petitioner properly sought to offer evidence of their prior sexual history together as probative of whether they engaged in similar conduct at the time of the alleged offense.

Mr. Hicklin offered his testimony about the prior intimate relationship with K.H. "to infer consent by the victim, and his

'state of mind' at the time of the incident," pursuant to RCW 9A.44.020 and ER 801(3).[7] *Appendix G: Motion in Limine*, at 1-2, ¶ 5. In accordance with RCW 9A.44.020(3), the defense filed a separate motion and supporting affidavit. See Appendix E: Motion and Affidavit to Allow Evidence of Alleged Victim's Past Sexual History With The Defendant; Appendix F: Affidavit of John D. Black. As defense counsel explained:

> Defendant Hicklin seeks to testify that there has been extensive sexual behavior over the past three years to infer consent by the victim, and his [state] of mind at the time of the incident.

Appendix E: Motion and Affidavit, at 2 ¶ 3 (emphasis added).

Evidence regarding the sexual relationship between Mr. Hicklin and K.H. was necessary and probative of an inference of mutual consent to intimate physical contact. It also demonstrated Mr. Hicklin's non-criminal "state of mind" at the

[7] No argument was made regarding ER 801(3).

time of these alleged offenses, particularly the assault charge. *Appendix G: Motion in Limine*, at ¶ 6.

Mr. Hicklin testified about his relationship with K.H. They first met during recovery group meetings in 2016 or 2017. RP 39. They soon became intimate.

> A: I gave her ride homes [sic] after the meetings and she'd invite me in and we'd hang out for the first time and then after that things kinda escalated and to our sexual relationship.
> Q: And so just to clarify then, you guys started having sex like after the second time you were together?
> A: Yes.
> Q: So, you've been having intimate relationships [sic] with her for a couple three years then?
> A: Yes.

RP 39-40 (emphasis added).

Mr. Hicklin also described prior circumstances similar to those surrounding their July 4th rendezvous at Mr. Hicklin's mother's home involving foreplay in the hot tub and culminating in sex.

A: … I did go over to her house and she came over to my apartment and also to my mother's house to hang out in the hot tub.
Q: So, she'd been over there previously to take a hot tub with you?
A: Yes.
Q: And how long ago was that?
A: Three years ago, somewhere in there.
Q: Did she bring a bathing suit with her?
A: No.
Q: And did you have sex that night?
A: Yes.

RP 40 (emphasis added).

Mr. Hicklin highlighted their prior experience when he invited her on July 4th.

A: Yeah, I asked her if she wanted to get naked in the hot tub.
Q: Okay and so she agreed?
A: She called me up and I can't remember, 15, 20 minutes later she called me up and said she was on her way over.

RP 41.

After K.H. arrived, they again engaged in intimate consensual foreplay in the form of kissing and groping in

anticipation of another sexual encounter and similar to their prior experience. RP 41-42.

> We started kissing and hands kinda all over the place and yes, but we did not have sex.
>
> RP 42.

Instead, before they went any further, Mr. Hicklin "asked her if she'd be willing to go down to the store and pick up some more alcohol 'cuz my alcohol was gone." RP 42. K.H. agreed and left for the nearby convenience store, but "… she never came back." RP 43.

Judge Erickson concluded the prior sexual activity was not sufficiently similar to what K.H. alleged had occurred on July 4th:

> … there is no particular factual showing demonstrating even the slightest similarity between past consensual sexual activity and what's alleged here. I mean, I just don't think we have enough detail that goes to the issue of consent.
>
> RP 46. Judge Erickson concluded the evidence was

inadmissible both because Mr. Hicklin had not demonstrated sufficient similarity, and he denied there was any sexual intercourse that evening. RP 48-49.[8]

The exclusion of this evidence of prior intimate sexual activity undercut Mr. Hicklin's ability to put his testimony and the evidence into context. The exclusion was error.

b. The statute and rules support the admission of this evidence because it is probative and necessary to fulfill the constitutional right to present one's defense and confront the State's witnesses.

The fundamental right of criminal defendants to "a fair opportunity to defend against the State's accusations" requires they be heard in their own defense and have the opportunity to examine witnesses against them. *Chambers v. Mississippi*, 410

[8] The prosecutor also argued Hicklin's testimony only established a single "hot tub" experience that was three years earlier and therefore too remote to be relevant. RP 48. Judge Erickson did not rule on that ground, but Mr. Hicklin's case involved regular or ongoing sexual activity over the three-year period. *Cf. State v. Kalamarski*, 27 Wn.App. 787, 790, 620 P.2d 1017 (1980) (excluding one prior act of intercourse 18 months before the alleged offense was within the court's discretion).

U.S. 284, 294, 93 S. Ct. 1038, 35 L. Ed. 2d 297 (1973) (state may not enforce its rules of evidence in a way that prevents a fair trial by barring a defendant from presenting reliable exculpatory evidence). As a result, the right to "confront and cross-examine adverse witnesses is guaranteed by both the federal and state constitutions." *State v. Darden*, 145 Wn.2d 612, 620, 41 P.3d 1189 (2002). The Court has recognized, therefore, that a defendant's right to challenge the accuracy and veracity of a key State witness must prevail over the asserted interests in not revealing sensitive information.[9]

In accordance with these fundamental principles, Mr. Hicklin sought to testify on his own behalf about his history of intimate physical contact with K.H. That testimony was directly relevant and highly probative evidence necessary to explain the context of their quick foray into physical intimacy on July 4th

[9] It is worth noting that the Court limited the compelling-state-interest test from *Hudlow* to the circumstances for which it was crafted, prevention of the introduction of prejudicial evidence at trial. *Darden*, 145 Wn.2d at 620.

and establish the exculpatory reasons for Mr. Hicklin's DNA on K.H.'s neck. ER 401.

The threshold to admit relevant evidence is low; even minimally relevant evidence is admissible. *Kappelman v. Lutz*, 167 Wn.2d 1, 9, 217 P.3d 286 (2009); *Mutual of Enumclaw Insurance Co. v. Gregg Roofing, Inc.*, 178 Wn. App. 702, 729, 315 P.3d 1143 (2013). Evidence tending to establish a party's theory, or to qualify or disprove the testimony of an adversary, is relevant evidence. *Lamborn v. Phillips Pac. Chemical Co.*, 89 Wn.2d 701, 706, 575 P.2d 215 (1978); *Hayes v. Wieber Enterprises, Inc.*, 105 Wn. App. 611, 617, 20 P.3d 496 (2001). Relevant evidence embraces even facts which offer only circumstantial evidence of any element of a claim or defense. *Davidson v. Municipality of Metropolitan Seattle*, 43 Wn. App. 569, 573, 719 P.2d 569 (1986); 5 Karl B. Tegland, *Washington Practice: Evidence Law and Practice* § 83 (2d ed. 1982). To be relevant, evidence must (1) tend to prove or disprove the

existence of a fact, and (2) that fact must be of consequence to the outcome of the case including "facts which offer direct or circumstantial evidence of any element of a claim or defense." *Id.*

c. Petitioner established the relevance and admissibility of testimony about their prior intimate sexual history while the trial court abused its discretion in excluding that evidence.

The record below, established through the defense offer of proof, showed how the prior history of intimate sexual activity was significant and circumstances sufficiently similar to support admission. See RP 39-44. Mr. Hicklin's insistence that they did not ultimately have sexual intercourse on July 4th did not erase the probative value of evidence of those regular intimate encounters because K.H.'s consent to the intimate physical activity that did occur was still truly relevant. As defense counsel explained,

> I think it does go to consent. I mean, she knows she's coming over to take a hot tub and they've

> always had sex, so why wouldn't you think you were gonna, that's why you were coming over is to have a hot tub and have sex.

RP 47. "[H]e's denying they had intercourse," but clearly described how there was intimate physical contact, and the similarity to their prior experiences. RP 47. Without the history of their prior intimacy to put Mr. Hicklin's conduct into context, an unreasonable burden is placed on the defense's ability to tell its story.

i. The evidence of prior sexual intimacy was highly relevant.

The evidence of regular sexual relations offered by Mr. Hicklin was highly relevant because it tended "to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence." ER 401. That fact was the allegation of nonconsensual physical force alleged as part of both the rape and assault charges. The presence of Mr. Hicklin's DNA on K.H.'s neck was a critical piece of evidence the State relied on

to support the charges. See State's Closing Argument at RP 731-33; State's Rebuttal at RP 761.

It was imperative therefore that Mr. Hicklin be permitted to establish that it was a result of consensual, noncriminal, conduct, not rape or assault. That was a fact of consequence that went to the elements and defenses of both the rape and the assault allegations.

Where the defense challenges the State's evidence inferring rape and assault based on evidence of Hicklin's DNA on K.H.'s neck, testimony regarding their regular intimate activity was highly relevant because it made it more likely that any physical exchange on July 4th was a result of similar consensual conduct. That fact was crucial to the outcome of the case and therefore highly relevant. See *Davidson*, 43 Wn. App. at 573.

Mr. Hicklin's testimony would provide "direct or circumstantial evidence" regarding several crucial elements of

his claim and defense. *Id.* Evidence of similar prior intimate sexual behavior was important because it illustrated that they engaged in lawful forms of physical intimacy. That evidence went squarely to the reliability and reasonableness of Mr. Hicklin's explanation regarding the DNA evidence which was in turn central to the State's case.

The assertion that "consent" to alleged sexual contact was not an issue and therefore evidence of past conduct was not admissible pursuant to RCW 9A.44.020 ignored the direct relevance and high probative value as evidence regarding consent to intimate physical behavior Mr. Hicklin described, notwithstanding the accused's testimony that sexual contact did not occur.

To the extent that an assault requires harmful or offensive touching, the nature of the physical contact and Mr. Hicklin's state of mind were both issues at the core of his defense to those allegations. The history of their intimacy was relevant and

probative of the likelihood the physical contact he described was credible and consistent with the State's DNA evidence.

The inquiry as to the relevancy of Mr. Hicklin's prior sexual activity with K.H. under ER 401 must be whether her consent to sexual activity in the past makes it more or less probable that she consented to activity on this subsequent occasion. *State v. Hudlow*, 99 Wn.2d 1, 10, 659 P.2d 514 (1983). As a result, "[f]actual similarities between prior consensual sex acts and the questioned sex acts claimed by the defendant to be consensual would cause the evidence to meet the minimal relevancy test of ER 401." *Hudlow*, 99 Wn.2d at 11.

The inquiry into the relevance of past sexual activity requires an all-encompassing examination. In this case, the regular or routine nature of sexual activity was relevant and necessary to establish Mr. Hicklin's defense. The trial court

abused its discretion in finding the history was not relevant to the defense.

ii. The plain language of RCW 9A.44.020 did not require exclusion because it was not a credibility attack based on lack of chastity.

The trial court misread and misapplied the plain and limited language of the statute. The statute provides:

> … when the perpetrator and the victim have engaged in sexual intercourse with each other in the past, and when the past behavior is material to the issue of consent, evidence concerning the past behavior between the perpetrator and the victim may be admissible on the issue of consent to the offense.

RCW 9A.44.020(2). The statute does not create a bar to admissibility for purposes other than establishing consent. Nor does it limit itself to cases where the accused has admitted all the elements and then asserted the affirmative defense.

The nature and purpose for which the evidence is offered is critical. For example, in *Carver*, the defendant proffered

evidence the victims suffered prior sexual abuse by others to rebut the inference the victims would have been unable to describe the abusive acts because of their age unless the abuse was experienced at the hand of the defendant. *State v. Carver*, 37 Wn.App. 122, 123-24, 678 P.2d 842 (1984). The Court of Appeals reversed, holding the evidence was admissible because (1) it was not evidence of a victim's prior misconduct but evidence of prior abuse; (2) consent was not at issue since the victims' ages made it impossible for them to consent; and (3) evidence of prior abuse was not so prejudicial as to "cause the jury to decide the case on an improper emotional basis." 37 Wn.App. at 125.

Mr. Hicklin certainly did not offer this evidence for the prohibited purpose of attacking the complaining witness's credibility based on an implication of promiscuity or immorality. The evidence of their history of regular sexual activity was necessary to illustrate that they engaged in

consensual intimacy on July 4th and establish the lawful reason for his DNA on K.H.'s neck.

In such circumstances, the rule contemplates admission "when the past behavior is material to the issue of consent…." *Id.* The statute does not require the accused admit to intercourse or limit the potential forms of "consent" to which it may be relevant to cases of sexual penetration. The law has long recognized that a defendant has a right to pursue alternative and even inconsistent defenses. *See, e.g., State v. Fernandez-Medina*, 141 Wn.2d 448, 6 P.3d 1150 (2000); *State v. Castle*, 86 Wn. App. 48, 60, 935 P.2d 656, review denied, 133 Wn.2d 1014 (1997).

Hudlow recognized that the statutory limitations on sexual history evidence were "directed at the use of such evidence for impeaching the victim's general credibility for truth and veracity." 99 Wn.2d at 8. Mr. Hicklin did not offer the evidence for the purpose of generally impeaching K.H.'s

credibility. The evidence was not that their prior relationship to that K.H. was innately immoral and less trustworthy. *Cf. Hudlow*, 99 Wn.2d at 10-11. It explained where and why she was there with Mr. Hicklin and rebutted the prosecutor's inference that DNA on neck supported finding criminal conduct.

Hudlow recognized evidence of past sexual relations could be relevant, particularly "prior sexual conduct by complainant with defendant." 99 Wn.2d at 12. In the same way, the statute here does not bar the admission of Mr. Hicklin's testimony regarding their prior intimate activity where it is germane to explain their relationship and the lawful presence of his DNA on K.H.'s neck.

iii. There were ample factual similarities and the trial court's finding to the contrary was an abuse of its discretion.

The trial court's finding there was an absence of factual similarities between the prior consensual sexual activity and the

conduct Mr. Hicklin described fails for at least two reasons.[10] First, the statute does not define such a necessary degree of similarity. Second, the trial court's exclusion was based on a comparison to the complaining witness's story rather than the defense theory of the evidence Mr. Hicklin proffered.

As to the first, the evidence certainly meets the minimal relevancy test of ER 401, and the factual similarities for purposes of RCW 9A.44.020 were manifestly apparent in the offer of proof. The clear testimony provided by Mr. Hicklin described both their long-term intimate sexual relationship and their specific experience involving the hot tub. Judge Erickson's assertion "he didn't testify that way," was untenable in light of the record. RP 49.

Defense counsel explained:

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[10] Review of a trial court's exclusion of evidence is for an abuse of discretion. *State v. Garcia*, 179 Wn.2d 828, 846, 318 P.3d 266 (2014). A trial court abuses its discretion, *inter alia*, if it applies the wrong legal standard. *State v. Madsen*, 168 Wn.2d 496, 504, 229 P.3d 714 (2010).

> it shows a pattern of sexual conduct and it's the bigger part of his whole…. his defense is that yeah, this gal, we've had a relationship, for years she's been doing this, we've been doing this, everybody's been happy. That shows a pattern of behavior.
>
> RP 49 (emphasis added).

An "all-encompassing examination, both of the past sexual activity and the circumstances comprising the defendant defense," including Mr. Hicklin's claim of consensual physical intimacy, establish relevance, not only to consent to the intimacy he described but to contest the State's inference from the DNA evidence. *Weaville*, 162 Wn. App. at 820.[11]

In Mr. Hicklin's case, the practice of engaging in regular consensual sexual encounters was what was relevant. The fact

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[11] In *Weaville*, the trial court erred by categorically excluding evidence of prior sex relations where a further offer of proof may have established the relevant similarities where rape was charged based on being "unable to consent" which the defendant disputed. 162 Wn. App. at 823. The court here made a similar error by categorically excluding the evidence where Mr. Hicklin did not admit to sexual intercourse and then argue the affirmative defense of consent.

that history also included a prior sexual encounter following a rendezvous where they "got naked" at the hot tub was independently relevant. The consensual intimacy described by Mr. Hicklin on July 4th was consistent with the pattern of prior sexual contact.

Once other circumstances are identified which make the prior consensual sexual activity factually closer to the defendant's version of the story and the evidence is deemed relevant, the probative value must be balanced against the partially prejudicial effect. *Hudlow*, 99 Wn.2d at 12. The "other circumstances" described by Mr. Hicklin in the form of their prior encounter sexual encounters as well as the "naked" hot tub experience, establish the admissibility under both the statute and the rules.

The trial court concluded the history was not sufficiently similar and that because Mr. Hicklin said there was no sexual intercourse, the evidence was barred by RCW 9A.44.020. RP

51, citing *Weaville*, 162 Wn. App. 801; *Hudlow*, 99 Wn.2d 1. The trial court's application of those precedents was misguided, and that misapplication of the law was an untenable abuse of its discretion.

The *Weaville* court recognized that where evidence is material to the defendant's defense, it is a "denial of due process to exclude it." 162 Wn. App. 2d 108; *Taylor v. Illinois*, 484 U.S. 400, 406-09, 108 S. Ct. 646, 98 L. Ed. 2d 798 (1988). The trial court's creation of a categorical exclusion for evidence of past sexual history for purposes other than establishing consent to sexual contact was equally flawed. The Court of Appeals in *Weaville* found fault in the trial court's categorical exclusion of evidence of prior sexual activity. The trial court in Mr. Hicklin's case similarly misapprehended the significance of its categorical exclusion because the accused denied sexual intercourse occurred at the time or in the manner alleged.

d. The constitutional right to confront and cross-examine an accuser was violated by the improper exclusion of prior history testimony.

Mr. Hicklin's rights under the Rules of Evidence and RCW 9A.44.020 are reinforced by his constitutional right to confront and cross-examine K.H. on the nature of their relationship. "The right of cross examination … is implicit in the constitutional right of confrontation and helps assure the 'accuracy of the truth-determining process.'" *Chambers*, 410 U.S. at 294.[12]

While these rights are not absolute, the evidence Mr. Hicklin sought to introduce certainly had "at least minimal relevance." *Darden*, 145 Wn.2d at 622. "[I]f relevant, the burden is on the State to show the evidence is so prejudicial as

[12] When reviewing evidentiary errors implicating constitutional rights, a reviewing court will: first look to see if the trial court abused its discretion in excluding evidence. . . . If there is no abuse of discretion, the inquiry ends because there is no error. If the trial court does abuse its discretion, then we take the next step and review de novo the claim that a constitutional right has been violated. *State v. Blair*, 3 Wn.App.2d 343, 351, 415 P.3d 1232 (2018).

to disrupt the fairness of the fact-finding process at trial." *Darden*, 145 Wn.2d at 622. The State made no such showing here.

When comparing the probative value to any possible prejudice, courts look specifically at "potential prejudice to the truth finding process itself." *Hudlow*, 99 Wn.2d at 13. There was no basis to believe the discussion of their past sexual history might confuse the issues, mislead the jury, or cause the jury to decide the case on an improper or emotional basis. *Id.* Moreover, "considerations of prejudice to the victim are built into the rape shield statute and further consideration of that factor may go too far in protecting the victim at the expense of defendant's right to a fair trial." 99 Wn.2d at 13.

On the other hand, the effect of excluding the evidence on Mr. Hicklin's right to a fair trial was incalculable. Because the reasonableness of Mr. Hicklin's explanation of the noncriminal source of his DNA on K.H.'s neck was critical to

"the integrity of the truth-finding process and the defendant's right to a fair trial," there was no state interest compelling enough to preclude its introduction consistent with the Sixth Amendment and Const. art. 1, § 22. *Hudlow*, at 14, 16.

The Supreme Court has recognized that evidence of similar prior conduct could have a high probative value. *Hudlow*, at 16-18. Presentation of this evidence cannot be restricted if doing so would deprive the defendants of the ability to testify to their versions of the incident. *State v. Jones*, 168 Wn.2d 713, 713-16, 230 P.3d 576, 580 (2010).

Excluding this evidence was a violation of the Sixth Amendment because it effectively barred Mr. Hicklin from presenting a defense. *Jones*, 168 Wn.2d at 713, 721. In *Jones*, the Court reversed a rape conviction because the defendant was precluded from testifying as to his version of the incident based on a misapplication of the rape shield law. *Id.* at 720-21. The exclusion of evidence that constitutes a defendant's entire

defense is so highly probative that no State interest is compelling enough to preclude its introduction. *Jones*, 168 Wn.2d at 721.

Whether the exclusion of testimony violated the defendant's Sixth Amendment right to present a defense depends on whether the omitted evidence evaluated in the context of the entire record creates a reasonable doubt that did not otherwise exist. *State v. Duarte Vela*, 200 Wn. App. 306, 326, 402 P.3d 281 (2017) (right to present a defense was violated when the trial court excluded relevant threats the victim made against the defendant), review denied, 190 Wn.2d 1005 (2018). The evidence of an ongoing three-year intimate sexual relationship between Mr. Hicklin and K.H. which specifically included a prior "naked" foray into the hot tub before sex, raises a significant reason to doubt the allegations and the inferences the State sought to draw from the physical evidence.

This evidence was in turn highly relevant to the jury's ability to assess the reliability of Mr. Hicklin's account. Evidence of regular intimate conduct in the past was essential to support Mr. Hicklin's claim there was consensual physical contact.

By excluding the full historical context in which they would explain how they found themselves in full embrace and exchanging bodily fluids, Mr. Hicklin was unable to rebut the implication that his DNA could be present only because he committed the alleged rape and strangulation. The trial court prevented Mr. Hicklin from presenting a meaningful defense and confronting the witnesses against him, in violation of the Sixth Amendment and Art. I, § 22. *See Jones*, 168 Wn.2d at 721; *Weaville*, 162 Wn. App. at 818; *State v. Om*, 197 Wn.2d 343, 351, 482 P.3d 913 (2021); *State v. Cox*, 17 Wn. App. 2d 178, 186, 484 P.3d 529 (2021).

e. The issue was preserved for review and not waived.

A motion in limine avoids the requirement that counsel object to contested evidence when it is offered during trial. The party losing the motion in limine, therefore, has a standing objection if the trial court makes a "final ruling" on the motion, "unless the trial court indicates that further objections at trial are required when making its ruling." *State v. Powell*, 126 Wn.2d 244, 256, 893 P.2d 615 (1995). The Supreme Court has explained:

> If the trial court has made a definite, final ruling, on the record, the parties should be entitled to rely on that ruling without again raising objections during trial.

State v. Koloske, 100 Wn.2d 889, 895-96, 676 P.2d 456 (1984).

Here, the trial court had the defense offer of proof which established the relevance and probative value of the proffered testimony. See Appendix E, F, G and H (RP 36-51). The trial

court then made a definitive ruling that the evidence of prior intimate relationship was inadmissible. RP 45-46. The court also concurred with the State's theory that since Hicklin denied intercourse, evidence of prior sexual activity was not relevant. RP 46.

The court then reiterated the basis upon which it was limiting Mr. Hicklin's testimony.

> Well, he can certainly deny it and I think it's up to the jury to determine credibility. I just don't think the consent issue is - what I've heard I don't believe would allow me to find that that's - again, there's no particular factual showing, demonstrating even the slightest similarity of past consensual sexual activity at that this one….

RP 48.

The issue was preserved, and Mr. Hicklin did not waive his right to relief on collateral attack.

2. Defense counsel's representation was constitutionally deficient in failing to advance other viable bases for admission of the critical evidence, supplementing the factual record in support of the request, and preserving the objection if necessary.

Mr. Hicklin's trial attorney identified the potential concerns regarding RCW 9A.44.020, but he did not clearly articulate additional available bases for the admission of this critical evidence. Defense counsel also failed to provide additional factual details sought by the trial judge to establish admissibility which were readily available through Mr. Hicklin's testimony. Furthermore, if this Court were to find that counsel failed to preserve the issue by obtaining a final ruling, such representation would not have been reasonable, and Mr. Hicklin suffered substantial prejudice as a result.

a. Constitutionally acceptable criminal defense counsel must meet objective standards of reasonableness.

The Sixth Amendment to the United States Constitution and Article I, § 22 of the Washington Constitution guarantee

people accused of a crime the effective assistance of counsel in the preparation and presentation of their defense. *Strickland v. Washington*, 466 U.S. 668, 685-86, 104 S. Ct. 2052, 80 L. Ed. 2d 674 (1984); *In re Pers. Restraint of Yung-Cheng Tsai*, 183 Wn.2d 91, 99, 351 P.3d 138 (2015). The constitutional guarantee of counsel will include different things depending on the circumstances. *Tsai*, 183 Wn.2d at 99-100 (research and apply relevant statutes); *State v. Lopez*, 190 Wn.2d 104, 123-24, 410 P.3d 1117 (2018) (investigate, prepare for trial and attend court). A person is entitled to relief from constitutionally deficient assistance of counsel where (1) defense counsel erred by acting unreasonably and (2) that the error was so significant it deprived the accused of a fair trial. *State v. McFarland*, 127 Wn.2d 322, 334-35, 899 P.2d 1251 (1995).

In practice, a criminal defense attorney must perform to the standards of the profession and the failure to meet those standards requires a new trial when the defendant has been

prejudiced by counsel's failure. *Id.* at 334-35. Deficient performance occurs when counsel's efforts fall below an objective standard of reasonableness under the circumstances. *State v. Kyllo*, 166 Wn.2d 856, 862, 215 P.3d 177 (2009) (where attorney proposed a jury instruction that misstated the legal standard). That standard imposes certain specific duties into an overarching duty of zealous advocacy that requires defense counsel "bring to bear such skill and knowledge as will render the trial a reliable adversarial testing process." *Tsai*, 183 Wn.2d at 100.[13]

The constitutional requirements that ensure a fair trial are breached where, for example, counsel fails to object to erroneous jury instructions and the facts elicited at trial would not support a conviction. *See State v. Ermert*, 94 Wn.2d 839,

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[13] These specific duties may include: a duty of loyalty, a duty to avoid conflicts of interest [and] the more particular duties to consult with the defendant on important decisions and to keep the defendant informed of important developments in the course of the prosecution. *Tsai*, 183 Wn.2d at 100 (citing *Strickland*, 466 U.S. at 688).

849, 621 P.2d 121 (1980). Similarly, where counsel failed to competently present a diminished capacity defense based on voluntary intoxication to a specific charge, his performance was deficient. *State v. Thomas*, 109 Wn.2d 222, 225, 743 P.2d 816 (1987).

More recently, the Court of Appeals held defense counsel was ineffective for failing to maintain his objection to the testimony of a counselor about statements made during joint counseling. The evidence was inadmissible because it was protected by statutory privilege and that failure to preserve the objection was prejudicial to the accused. *See State v. Fields*, ___ Wn. App. 2d ___, 553 P.3d 71 (2024).

b. Defense counsel's representation failed to meet professional standards where he breached several important duties.

The presumption of reasonableness which shrouds the work of defense attorney is rebutted by showing the attorney's representation failed to meet the prevailing professional norms.

In re Pers. Restraint of Davis, 152 Wn.2d 647, 673, 101 P.3d 1 (2004). Mr. Hicklin must then establish there was no legitimate strategic or tactical reason for his attorney's failure to take the appropriate steps on his behalf. *State v. Salas*, 1 Wn. App. 2d 931, 949-50, 408 P.3d 383 (2018).

Because the ultimate conclusion of whether counsel's performance was ineffective constitutes an application of law to established facts, it is a mixed question of fact and law reviewed de novo. *Lopez*, 190 Wn.2d at 116-17; *In re Pers. Restraint of Fleming*, 142 Wn.2d 853, 865, 16 P.3d 610 (2001).

i. The failure to advocate for alternate bases for admission fell below recognized professional standards.

Representation of a criminal defendant carries the basic duty to advocate for the defendant's cause and utilizing "such skill and knowledge as will render the trial a reliable adversarial testing process." *Strickland*, 466 U.S. at 688 (citing *Powell v. Alabama*, 287 U.S. 45, 68-69, 53 S. Ct. 55, 77 L. Ed. 158

(1932)). In considering the adequacy of representation, courts look to prevailing norms and expectations of attorneys as guides to determine what is reasonable. *Strickland*, 466 U.S. at 688 (referencing the ABA Standards for Criminal Justice (2d ed. 1980)); *see also A.N.J.*, 168 Wn.2d at 109-10.

The ABA Standards expect that a defense attorney will take steps necessary to ensure a clear and complete trial record, including making objections; will develop, in consultation with the defendant, a defense strategy that includes a theory of the case; as well as that counsel will know the rules of evidence. ABA, Criminal Justice Standards for the Defense Function, stds. 4-1.5, 4-3.7, 4-7.6 (2017) (emphasis added).

In Washington, RPC 1.1 directs that "a lawyer shall provide competent representation to a client. Competent representation requires … thoroughness and preparation reasonably necessary for the representation." Reasonable and competent representation begins with an attorney's duty to

research and apply the relevant law. *Kyllo*, 166 Wn.2d at 862. Competent representation includes reasonable factual investigations and legal research regarding the relevant statutes. *Tsai*, 183 Wn.2d at 102 (counsel had a duty to advise on relevant immigration consequences). The failure to conduct appropriate legal or factual investigation can constitute ineffective assistance of counsel when the matter is at the heart of the case. *Kyllo*, 166 Wn.2d at 868. For example, the Court found deficient performance when defense counsel knew her client had an extensive criminal record but failed to conduct additional research to ascertain whether the client was at risk of a third strike. *Crawford*, 159 Wn.2d at 91. The Court also found deficient performance where reasonably adequate research would have prevented the possibility of conviction based on acts predating the relevant statute. *State v. Aho*, 137 Wn.2d 736, 745-46, 975 P.2d 512 (1999).

Defense counsel's failure to assert the independent basis for admitting evidence of the intimate relationship pursuant to ER 404(b) was deficient. RCW 9A.44.020(2), by its terms, is limited to circumstances where the alleged victim's past sexual behavior is offered on the issue of credibility or consent. This evidence of a prior and ongoing intimate sexual relationship was admissible to prove "motive, opportunity, intent, preparation, plan, knowledge, identity, or absence of mistake or accident." Evidence of these prior acts of intimacy was relevant and admissible to prove Mr. Hicklin's motive in physically contacting her was similarly benign. Similarly, these prior acts demonstrate that his kissing and fondling, with the resulting DNA, was motivated by the same romantic intent, rather than to assault or imprison. These independent grounds, not cited or argued by defense counsel, provide a convincing basis under which the trial court would have been compelled to admit the evidence.

Defense counsel also failed to offer Mr. Hicklin's testimony regarding their prior history, after the prosecutor "opened the door" during the direct examination of K.H. K.H. acknowledged her prior evening at Mr. Hicklin's mother's home and their use of the hot tub together. RP 318-19. K.H. denies, however, that they were "naked" on the prior occasion and implying a purely platonic relationship. Mr. Hicklin should have been permitted to counter this assertion and impeach K.H.'s testimony by confronting her directly and testifying on his own behalf.

The trial court has discretion to admit otherwise excluded evidence when a witness "opens the door" during their testimony "to the explanation or contradiction of that evidence." *State v. Ortega*, 134 Wn. App. 617, 626, 142 P.3d 175 (2006). This rule preserves fairness. *State v. Gefeller*, 76 Wn.2d 449, 455, 458 P.2d 17 (1969). It allows courts to guard against one party gaining an unfair advantage by introducing

evidence about an excluded subject while the other party remains barred from doing so. *Id.* Mr. Hicklin should have been permitted to contradict that critical testimony.

Defense counsel provided constitutionally deficient representation when he failed to articulate these manifestly apparent alternative bases for the admission of critical exculpatory evidence regarding the intimate relationship with K.H. The evidence was crucial to prove Mr. Hicklin's theory of the case and explain to the jury the lawful reason for the presence of his DNA. There was no legitimate strategic or tactical reason for the counsel's failure to assert additional bases for admission. *Salas*, 1 Wn. App. 2d at 949-50.

ii. The failure to provide the court with additional factual details in support of the offer of proof.

The "right to effective assistance includes a 'reasonable investigation' by defense counsel." *State v. Boyd*, 160 Wn.2d 424, 434, 158 P.3d 54 (2007). This duty includes either

conducting the appropriate investigation or making a reasonable decision that a particular avenue of investigation is unnecessary. *In re Pers. Restraint of Gomez*, 180 Wn.2d 337, 355, 325 P.3d 142 (2014). The degree and extent of investigation required will vary depending upon the issues and facts of each case. *State v. A.N.J.*, 168 Wn.2d 91, 110-11, 225 P.3d 956 (2010).

A reasonable and competent investigation must be sufficient to allow counsel to make informed decisions about the representation and pursue reasonable lines of defense. Interviewing the defendant to glean relevant information and then being prepared to present it in court is at the core of the defense attorney's obligations. *Id.*

Mr. Hicklin's attorney was provided with ample opportunity to complete further investigation and to supplement the record as necessary. RP 51. Evidence sufficient to further establish the relevance of their prior sexual history was crucial

to demonstrating the reliability of Mr. Hicklin's testimony about what occurred on July 4th. If defense counsel had inquired, he would have established specifically that Mr. Hicklin and K.H. had regularly engaged in intimate sexual activity over the previous three years and it was proceeded with the type of foreplay Mr. Hicklin described. Appendix A: Declaration of Sidney S. Hicklin, Jr., at 3. That evidence would have clearly satisfied the statutory requirements of RCW 9A.44.020 and provided invaluable support for Mr. Hicklin's defense.

Defense counsel's apparent failure to investigate and in turn support these evidentiary theories was not reasonable and fell below the recognized standards dictated by the Rules of Professional Conduct and the decisions of our courts. The duty of zealous advocacy required defense counsel strengthen the request to admit prior intimate history with readily available supplementary testimony. There was no strategic or tactical

reason not to do so. Appendix I: Declaration of Bruce Shamulka at 7.

Reasonably competent defense counsel would have answered Judge Erickson's concerns regarding the lack of similarity by making a more complete factual record regarding what occurred over the preceding three years of intimate relations and then again on July 4th. That evidence was readily available through Mr. Hicklin and failure to provide it to the court and the jury gutted the truth finding process.

iii. Any failure to preserve the objection was deficient representation by counsel.

The failure to assert and preserve viable arguments for the admission of this crucial evidence falls below the objective standards of reasonableness. Mr. Hicklin contends the trial court made a final ruling, however, if this Court disagrees, the failure to preserve the issue was deficient.

> When the trial court refuses to rule, or makes only a tentative ruling subject to evidence developed at

> trial, the parties are under a duty to raise the issue at the appropriate time with proper objections at trial.

Koloske, 100 Wn.2d at 895-96.

In *Salas*, the Court of Appeals found that defense counsel breached the duty where s/he should have found through rudimentary legal research, and cited to the court, controlling case law directly on point on the issue. 1 Wn. App. 2d at 951. Furthermore, there is no viable strategic or tactical reason why defense counsel would not assert relevant controlling law on the issue he had already raised. Appendix I: Declaration of Bruce Shamulka at 8.

Similarly, in *State v. Fields*, where defense counsel failed to conduct appropriate research and assert the statutory privacy privilege regarding statements made to licensed therapists in a joint counseling session, the representation was constitutionally deficient. *Fields*, ___ Wn. App. 2d ___, 553 P.3d 71 at ¶¶ 37-41.

If Judge Erickson's ruling was only "tentative" and defense counsel failed to preserve the issue, counsel's representation was constitutionally deficient. *Id.* Relief is required because there was no plausible reason not to fully litigate and preserve the issue. Mr. Hicklin's right to a fair and impartial adjudication was then substantially prejudiced.

c. Petitioner was so prejudiced by defense counsel's deficient representation as to warrant relief.

Where defense counsel failed to perform up to the objective standards of reasonableness and that deficient performance prejudiced Mr. Hicklin, he has received constitutionally deficient assistance of counsel. In doing so he has also established the actual and substantial prejudice the PRP standard requires by show a reasonable probability that the outcome of the proceedings would have been different. *In re Pers. Restraint of Crace*, 174 Wn.2d 835, 846-47, 280 P.3d 1102 (2012).

Mr. Hicklin identified three different aspects of his case from which there is a reasonable probability that, but for the counsel's deficient performance, had the jury heard this important additional evidence the result would have been different. Had the jury been aware there was a long-running and ongoing intimate relationship between Mr. Hicklin and K.H., there is a very reasonable probability the outcome would have been different.

It bears repeating that the DNA evidence did not link Mr. Hicklin to anything "below the waist" which was an essential aspect of the rape charge.[14] The DNA evidence was otherwise consistent with the defense Mr. Hicklin sought to offer, i.e., that the July 4th meeting was part of an ongoing intimate sexual relationship and as part of that liaison they engaged in the

[14] Ms. Zapolos testified Mr. Hicklin was not a contributor to the semen on K.H.'s pants. RP 580. The source of the male DNA found on the perineal swab was not identified because it "had a small amount of male DNA, amidst a large amount of female DNA" and was "not suitable for further analysis." RP 572.

lawful and consensual behavior he described.[15] Had the jury been aware of the full context then, Mr. Hicklin's denial of the rape and assault allegations, particularly in light of the DNA evidence, would have been viewed far differently. RP 574-75.

Ms. Zapolos agreed she could not tell whether the DNA profile she developed from the neck was from a kiss on the neck as opposed to skin-to-skin contact, but she acknowledged that bodily fluids such as saliva are considered to be rich sources of DNA. RP 579. This was significant because the testimony also indicated that it was likely, although not certain, that Mr. Hicklin would have left DNA if he had done what K.H. alleged.[16]

Mr. Hicklin's exclusion as a contributor to the semen stain made it reasonable to infer he also was not the male

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[15] The swab from the left side of the neck was not analyzed for the same reason. RP 573, 578. Ms. Zapolos acknowledged that there was a "different type of DNA analysis which targets only the male DNA in the sample," but that test wasn't done because "It was not requested by the agency." RP 573.

contributor on the perineal swab. Instead, it would be logical for the jury to conclude it was the same source as the pants, from which Mr. Hicklin was excluded.

Defense counsel argued that the absence of DNA in vaginal samples was particularly significant in assessing reasonable doubt. RP 754. The reliability of K.H.'s testimony was questionable given how much she had been drinking and she "remembers nothing from 7:00 until she gets to the hospital." RP 745. Questions about the timing led to the conclusion that "the timeline does not leave enough time for [rape and strangulation] that to happen." RP 747.

The evidence in this case was far from overwhelming or uncontested. Additional evidence of the long-term intimate

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[16] Ms. Zapolos testified that she does not always observe DNA from touch. RP 575. In her experience, "Half and half maybe that I obtain male DNA versus when I don't obtain DNA." RP 578. As for cases of alleged sexual intercourse specifically, Ms. Zapolos testified that intercourse does not always leave DNA. Except for the use of a condom, which was not present here, however, Ms. Zapolos could not think of any other potential circumstances. RP 576-77.

nature of the relationship would have profoundly altered the jury's analysis because when given the full context of the relationship it becomes reasonable and likely that the DNA arrived on K.H.'s neck lawfully and that Mr. Hicklin's testimony was ultimately the more reliable. Relief in the form of a new trial, or reference hearing, is required.

E. Conclusion

Petitioner Hicklin asks this Court to reverse his conviction and for a new trial, or such further proceedings as the Court finds appropriate.

F. Certification

The undersigned attorney hereby certifies that the number of words contained in this brief is less than 11,331 words, pursuant to RAP 18.17, based upon the word count calculation of the word processing software used to prepare the brief.

DATED this 6th day of December 2024.

Respectfully submitted,

/s/ *David L. Donnan*
David L. Donnan

WSBA No. 19271
Attorney for Petitioner

IV. REQUEST FOR RELIEF

I hereby request this Court waive the filing fee, reverse my conviction and sentence, and remand the case to the superior court for further appropriate proceedings.

V. OATH OF PETITIONER

I declare under the penalty of perjury of the laws of the State of Washington that I have examined this petition and to the best of my knowledge and belief it is true and correct.

Dated this 6th day of December 2024.

/s/ *Sidney S. Hicklin, Jr.*
Sidney S. Hicklin, Jr.